

§ 176. Inter-county probation. 1. Transfer of probation supervision. Where a person placed on probation resides in another jurisdiction within the state at the time of the order of disposition, the family court which placed him or her on probation may, and, in the case of orders of probation issued under article three or seven of this act, shall transfer probation supervision to the probation department in the jurisdiction in which the person resides. Where, after a probation disposition is pronounced, a probationer relocates to another jurisdiction within the state, the family court which placed him or her on probation may, and, in the case of orders of probation issued under article three or seven of this act, shall transfer probation supervision to the probation department in the jurisdiction of the probationer's new residence. Upon completion of a transfer of probation supervision as authorized pursuant to this subdivision, the probation department in the receiving jurisdiction shall assume all powers and duties of the probation department in the jurisdiction of the family court which placed the probationer on probation. Any transfer under this subdivision must be in accordance with rules adopted by the commissioner of the division of criminal justice services.

2. For all cases brought under article three or seven of this act, where probation supervision has been transferred under subdivision one of this section, the family court in the receiving jurisdiction shall hear any proceedings to enforce or modify the order of probation, unless the receiving family court determines that there is good cause to return the proceeding to the sending family court for adjudication, in which case the proceeding shall be returned to the sending family court for adjudication.

3. For the purpose of this section, "jurisdiction" shall mean a county or the city of New York.